

22STCV38409 22STCV38409

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV38409 Hearing Date: September 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
21, 2026

CASE NAME: L.M.

v. DOE 1

CASE NO.: 22STCV38409

MOTION

FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY ADJUDICATION

MOVING PARTY: Defendant

Los Angeles Unified School District

RESPONDING PARTY(S): Plaintiff L.M.

REQUESTED RELIEF:

1. An
order granting summary judgment of the first and third causes of action in
LAUSD's favor; or

2. Orders

in LAUSD's favor granting summary adjudication of the following issues:

a. There

is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law on Plaintiff's first cause of action for negligence;

b. There

is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law on Plaintiff's third cause of action for negligent hiring, retention, and supervision;

c. There

is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law because there is no evidence that LAUSD negligently hired the school psychologist;

d. There

is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law because there is no evidence that LAUSD negligently supervised the school psychologist;

e. There

is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law because there is no evidence that LAUSD negligently retained the school psychologist;

f.

There is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law because there is no evidence that LAUSD negligently supervised Plaintiff; and

g. There

is no triable issue as to any material fact, and Defendant LAUSD is entitled to judgment as a matter of law because any claim for damages as a result of the school psychologist's physical assault was not revived under CCP § 340.1 and is barred by the statute of limitations.

TENTATIVE RULING:

1. Motion

for summary judgment, or summary adjudication, is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 9, 2022, Plaintiff L.M. (Plaintiff) filed a complaint against DOE 1, DOE 2 (Defendants) with causes of action for: (1) negligence [school]; (2) negligence [Doe 2]; (3) negligent hiring, retention, and supervision [school]; (4) negligent hiring, retention, and supervision [Doe 2].

According to the complaint, Plaintiff brings this revival action pursuant to CCP § 340.1 for damages arising from childhood sexual abuse while under Defendants' custody and care. She alleges she was sexually abused and assaulted by Defendants' employee and/or agent while she was a student.

On January 4, 2023, Plaintiff filed the operative first amended complaint (FAC) with the same causes of action. It amended Doe 1 to be Los Angeles Unified School District (LAUSD).

On March 7, 2023, LAUSD filed a stipulation and proposed order to strike treble damages from the FAC which the court GRANTED.

On March 8, 2023, LAUSD filed an answer.

On January 10, 2024, Plaintiff filed a stipulated protective order which the court GRANTED.

On April 16, 2024, LAUSD filed a stipulation and order to continue trial and all related dates which the court GRANTED.

On April 11, 2025, LAUSD filed a stipulation and order to continue trial and all related dates which the court GRANTED.

On June 16, 2026, LAUSD filed the instant motion for summary judgment, or alternatively summary adjudication (MSJ). On September 1, 2026, Plaintiff filed an opposition. On September 10, 2026, LAUSD filed a reply.

LEGAL STANDARD:

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, fn. omitted (Aguilar).) “Once the [movant] has met that burden, the burden shifts to the [other party] to show that a triable issue of one or more material facts exists as to that cause of action” (Code Civ. Proc., (CCP) § 437c, subd. (p)(2); see Aguilar, supra, at p. 850.) The party opposing summary judgment “may not rely upon the mere allegations or denials of its pleadings,” but rather “shall set forth the specific facts showing that a triable issue of material fact exists” (CCP § 437c, subd. (p)(2).) A triable issue of material fact exists where “the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, at p. 850.)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets his or her initial movant's burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 840.) Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial. (CCP § 437c(p).) The opposing party may not simply rely on his/her allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The pleadings dictate the scope of a motion for summary judgment. “The materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment.’ [Citations.]” (Hutton v. Fid. Nat'l Title Co. (2013) 213 Cal. App. 4th 486, 493.) The pleadings here are challenging to decipher.

ANALYSIS:

Evidentiary

Objections

The court need not rule on the two objections lodged by Defendant as they are not material to the court's ruling.

Summary

Judgment/Adjudication

First Cause of

Action: Negligence

LAUSD contends summary judgment is appropriate because they cannot be liable for general negligence, there is no evidence that LAUSD negligently supervised Mr. Newton, there is no evidence LAUSD negligently supervised Plaintiff, and the evidence fails to support vicarious liability.

Plaintiff argues there is ongoing critical discovery needed to defeat the motion, that LAUSD is liable for both negligently supervising her and Mr. Newton, and her silence is not dispositive of her claims.

LAUSD replies that Plaintiff lacks authority for most of her positions, her argument on failure to report lacks merit, and then reiterates their original arguments.

According to the FAC, LAUSD was negligent in the placement and supervision of Plaintiff while at school and in the failure to keep her safe. (FAC ¶ 70.) Put differently, this is a negligent supervision of the student claim.

The necessary elements for negligence are: (1) that the defendant owed a legal duty to the plaintiff to use due care; (2) a breach of that duty; (3) causation; and (4) damages to the plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

"School districts and their employees have never been considered insurers of the physical safety of their students, but rather are placed under a general duty to supervise the conduct of children on school grounds during school sessions, school activities, recesses,

and lunch periods.” (Bartell v. Palos Verdes Peninsula Sch. Dist. (1978) 83 Cal.App.3d 492, 498, citing Dailey v. Los Angeles Unified School District (1970) 2 Cal.3d 741, 747, 748.)

“It is the duty of the school authorities to supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection. The school district is liable for injuries which result from a failure of its officers and employees to use ordinary care in this respect...’ [w]hat is ordinary care depends upon the circumstances of each particular case and is to be determined as a fact with reference to the situation and knowledge of the parties.” (J.H. v. Los Angeles Unified School Dist. (2010) 183 Cal.App.4th 123, 141 citing Taylor v. Oakland Scavenger Co. (1941) 17 Cal.2d 594, 600; Bellman v. San Francisco H.S. Dist. (1938) 11 Cal.2d 576, 582.) The law is well established that “a public school district may be vicariously liable under [Government Code] section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student.” (C.A. v. William S. Hart Union School Dist. (“C.A. v. William S. Hart”) (2012) 53 Cal.4th 861, 879.)

A claim for negligent supervision of students requires “facts demonstrating that school personnel failed to exercise ordinary prudence.” (Roe v. Hesperia Unified School District (2022) 85 Cal.App.5th 13, 29.) “Either a total lack of supervision or ineffective supervision may constitute a lack of ordinary care on the part of those responsible for student supervision.” (Ibid. [internal brackets and quotations omitted.]

Here, LAUSD met their initial burden as to lack of knowledge to defeat the foreseeability element. First, they provided evidence that no district employee or supervisor witnesses any of the alleged abuse or acts by Mr. Newton. (Separate Statement of Undisputed Material Facts (SSUMF) SSUMF No. 37.) Second, they provide evidence via Plaintiff’s testimony that she did not report the abuse to LAUSD. (SSUMF Nos. 21, 25, 35.) The burden shifts.

Plaintiff, in turn, met her burden to demonstrate a foreseeability issue. First, she provides evidence via her testimony that she repeatedly told her teacher she did not want to go with Mr. Newton and she acted out to let the teacher know she didn’t want to go. (SSUMF No. 24.) She

also provided evidence, via her testimony, that she returned to class from these sessions withdrawn. (SSUMF No. 25 (Depo Transcript at 112:10-24.) Finally, she provides evidence that these sessions occurred at the back of the school, in a locked room, with the window shades drawn. (SSUMF No. 23 (Depo Transcript at 63:24-65:19.) Taken together, this is sufficient evidence of constructive knowledge sufficient to reach the jury.

Accordingly, the court DENIES summary judgment on the first cause of action.

Third Cause of
Action: Negligent Hiring, Retention, and Supervision

LAUSD's arguments here are similar to the first cause of action. So, too, are Plaintiff's.

According to the FAC, LAUSD knew or should have known of Mr. Newton's unfitness to perform the work for which he was hired and this caused Plaintiff's injury. (FAC ¶¶ 90-95.) Put differently, this is a negligent supervision of the employee claim.

The necessary elements for negligent supervision and retention are: (1) that the employer hired the employee; (2) who was incompetent or unfit; (3) that the employer had reason to believe undue risk of harm would exist because of the employment; and (4) that harm occurred. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.)

"A school district is liable for the negligence or supervisory employees who knew or should have known of a school employee's dangerous propensities, but nevertheless hired, retained and failed to properly supervise the employee." (Rancho Cucamonga School Dist. v. Superior Court. (2025) 116 Cal.App.5th 718, 721 [internal quotations and brackets omitted.]) A school district "may be liable for hiring, supervising, or retaining an employee if the district's supervisory personnel had actual or constructive knowledge of the employee's dangerous propensities." (Ibid.) "Constructive knowledge is knowledge that may be shown by circumstantial evidence which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts." (Ibid.

[quotations omitted])

Here, LAUSD met their initial burden that they lacked actual or constructive knowledge. First, they provided evidence that no district employee or supervisor witnesses any of the alleged abuse or acts by Mr. Newton. (SSUMF No. 37.) Second, they provide evidence via Plaintiff's testimony that she did not report the abuse to LAUSD. (SSUMF Nos. 21, 25, 35.) Consistent with Rancho Cucamonga, this is sufficient to shift the burden.

Plaintiff, in turn, met her burden to demonstrate a triable issue of fact as to constructive knowledge. Critically, she provides evidence via her testimony that she repeatedly told her teacher she did not want to go with Mr. Newton and she acted out to let the teacher know she didn't want to go. (SSUMF No. 24.) She also provided evidence, via her testimony, that she returned to class from these sessions withdrawn. (SSUMF No. 25 (Depo Transcript at 112:10-24.) This activity raises two inferences: on the one hand, the Plaintiff may have been demonstrating difficult behavior, but on the other hand she may have been exhibiting this behavior as a result of abuse by Mr. Newton. This is unlike Rancho Cucamonga, where there was "no evidence any district employee observed anything that reasonably should have triggered suspicion of abuse to justify an inference of constructive knowledge." (Rancho Cucamonga, supra, 116 Cal.App.5th at p. 722.) This is therefore appropriate for the jury.

Accordingly, the court DENIES summary judgment on the third cause of action.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for summary judgment, or summary adjudication, is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 21, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court